

آئین/ دستور Constitution

2024



Yousafzai Global Organization

(یوسفزی نړیواله جرگه)

Transitional Constitution

Article Number 1

Name ----- Scope ----- Objective

Section 1:

Name: The name of this organization shall be "Yousafzai Global Organization"

Section 2:

Scope: The scope of this organization shall be at the global level.

Section 3:

Purposes and Objectives:

Sub section 1:

To educate about the importance of family trees, organizing and preserving them.

Sub section 2:

To highlight the historical paths and shrines of the Yusufzai, to protect them, and to establish important roads and cities named after national leaders to obtain chairs named after national heroes in universities, to integrate the history and achievements of leaders into the curriculum, and to pave the way for M.Phil and Ph.D. level work on the history of Yusufzai and Pashtuns.

Sub section 3:

To correct historical misconceptions about the Yusufzai and Pashtuns.

Sub section 4:

To preserve all kinds of communal assets and to utilize them for the benefit of the community.

Sub section 5:

To maintain our identity while being part of the global community, to keep connections and communications with our Yusufzai brethren to solidify our organization's position in the face of global challenges.

Subsection 6:

Educating our children's minds, familiarizing the youth and girls with the spirit of the times, and guiding them towards progress.

Subsection 7:

Organizing poetry sessions, cultural programs, and seminars under the organization's banner to preserve and protect our history and culture.

Subsection 8:

Resolving internal tribal conflicts and forming local councils for inter-tribal disputes, maintaining relationships with other tribes, and moving forward in unity.

Subsection 9:

Establishing contact with other tribes for national unity. Partnering with Yusufzai experts from every sector for the benefit of the people and utilizing their knowledge for the tribe's welfare.

Subsection 10:

Promoting the Pashto language and literature, supporting Pashto literary societies and gatherings.

Subsection 11:

Establishing the Yusufzai Museum.

Subsection 12:

Publishing standardized academic, literary, and historical books in Pashto, and translating standardized books from other languages into Pashto.

Section 13:

Integrating the Pashto language into the curricula and business sector.

Subsection 14:

Creating opportunities for Pashto language instructors to teach in public schools

Subsection 15:

Encouraging private schools to include Pashto as a mandatory subject in their curricula.

Subsection 16:

This council will work for human rights in light of international laws and decisions.

Subsection 17:

In the geography of the Yusufzais, this council will respect the sacred sites of Hindus, Sikhs, Christians, and Buddhists.

Section 2

Council Functionality

Subsection 1:

As per the constitution, the council will convene at the designated time.

Subsection 2:

Taking effective steps to implement the goals and objectives.

Subsection 3:

Visiting every village of Yusufzais, holding meetings with local Yusufzais, and informing them about the council's importance.

Subsection 4:

Organizing cultural gatherings and national efforts.

Section Number 3 Council Structure

Section 1:

- a) Supreme leader
- b) Grand council general body
- c) Administrative Leadership Cabinet
- d) Executive Council

1. Grand council general body:

The members elected by the sub-councils, the operational members of the organization, and the elected administrative leadership cabinet will have the Chairman and Acting Head of the organization as members of the Loya Jirga (Grand Organization)

2. Administrative Leadership Cabinet

The administrative leadership cabinet will be of two types:

- **Sub-Administrative Leadership Cabinet**
- **Central Administrative Leadership Cabinet**

Section Number 2:

The administrative leadership cabinets, both sub and central, will consist of six members each.

1. President
2. Vice President
3. Senior Deputy
4. Junior Deputy
5. Publication Deputy
6. Treasurer

General Council:

The general council will consist of 50 members, with the chairman being in addition to these members.

Section Number 3:

Supreme Leader

This will be an honorary position.

**Section 4:
Powers****Subsection Number 1:**

The Supreme Leader will work as a supervisor.

Subsection Number 2:

The Supreme Leader will assist the President.

Subsection Number 3:

The Supreme Leader will oversee administrative and financial activities.

**Section Number 2
Powers of the Grand Council / General Body****Subsection Number 1:**

The authority over all organizational matters will rest with the Grand Council.

Subsection Number 2:

Members of the Grand Council will call for a meeting of the General Council with the representation of one member from each sub organization, based on a simple majority vote.

Subsection Number (3):

The Grand Council will make all its decisions democratically.

Subsection Number (4):

The authority to interpret the constitution and make positive amendments to the constitution will be vested in the Grand Council.

Subsection Number (5):

The Grand Council will ratify all decisions made by the central executive

Powers of the Administrative Leadership Cabinet**Section Number 3****Powers of the President****Subsection Number 1:**

The President will be the constitutional leader of the council.

Subsection Number 2:

The President will oversee the administrative matters of the council.

Subsection Number 3:

The President will call for a meeting in consultation with the Senior Deputy.

Subsection Number 4:

The President, in collaboration with the General Secretary and the Treasurer, will have the authority to approve expenditures as needed.

Subsection Number 5:

The bank account will be in the names of the President, Senior Deputy, and Treasurer as joint holders.

Subsection Number 6:

The President will hold members who violate the constitution accountable.

Subsection Number 7:

The President will be bound by the decisions of the Executive Committee.

Subsection Number 8:

The President will preside over every meeting of the council or delegate this responsibility to someone else as per their discretion.

Section Number 3

Powers of the Vice President

Subsection Number 1:

The Vice President will carry out the responsibilities of the President in their absence.

Subsection Number 2:

The Vice President will be an advisor and assistant to the President.

Section Number 4

Powers of the Senior Secretary General:

Subsection Number 1:

The Senior Secretary will be responsible for the general affairs of the organization.

Subsection Number 2:

When calling a meeting of the Grand Council, the Senior Secretary will consult with the President.

Subsection Number 3:

The Senior Secretary will maintain the records of the council.

Subsection Number 4:

In collaboration with the President and Treasurer, the Senior Secretary will have the authority to approve expenditures as necessary.

Subsection Number 5:

The Senior Secretary will manage the administrative affairs and write the proceedings of the meetings.

Subsection Number 6:

The Senior Secretary will be responsible for correspondence with other organizations, councils, and institutions.

Subsection Number 7:

The Senior Secretary will present the minutes of the previous meeting during the upcoming meeting.

Section Number 5 Powers of the Junior Deputy

Subsection Number 1:

The Junior Deputy will be an advisor to the Senior Deputy in organizational matters.

Subsection Number 2:

In the absence of the Senior Secretary, the Junior Deputy will carry out their responsibilities.

Section Number 6 Powers of the Publication Secretary

Subsection Number 1:

The Publication Secretary will be responsible for the promotion of the council's activities.

Subsection Number 2:

The Publication Secretary will maintain communication with the council through various media channels.

Subsection Number 3:

The social media section will be under the control of the Publication Secretary.

Section Number 7 Powers of the Treasurer

Subsection Number 1:

The Treasurer will maintain the council's records of expenditures and income.

Subsection Number 2:

In collaboration with the President and Senior Secretary, the Treasurer will have the authority to approve expenditures as needed.

Section Number 8 Powers of the Executive Committee

Subsection Number 1:

The Executive Committee will oversee all the council's activities.

Subsection Number 2:

The Executive Committee will make most decisions based on a simple majority vote.

Subsection Number 3:

The Executive Committee will approve expenditures.

Section Number 5 Membership Procedure

Section Number 1:

Any eligible Yusufzai Pashtun can become a member of this council.

Section Number 2:

The membership fee will be 500 rupees.

Section Number 3:

Each new member must complete a regular membership form.

Section Number 4:

Waslee Yusufzai Pashtuns or Non Yusufzai Pashtuns of other regions may be honorary members, but they will not have voting rights.

Section Number 6 Elections

Section Number 1:

The positions of the administrative leadership cabinet will be for a term of three years.

Section Number 2:

Members of the administrative leadership cabinet and the chairman of the executive committee will be elected together.

Section Number 3:

For the election of the central administrative leadership, voting will be conducted only by the sub leadership.

Section Number 4:

There is no requirement for being a member of the sub leadership to participate in the elections for central leadership. Any registered Yusufzai member can enter any position in the central leadership.

Section Number 5:

For the positions of the President, Vice President, Senior Deputy, and Chairman of the Executive Committee, the entry fee for elections will be 5000 rupees. For other positions, it will be mandatory to collect a fee of 3000 rupees.

Section Number 6:

At the end of the term of the administrative leadership, the Chairman of the Executive Committee and the Supreme Leader will conduct elections within three months.

Section Number 8:

The Chairman of the Executive Committee and the Supreme Leader will form a four member council of lawyers, and the elections will be conducted under the supervision of the lawyers with a secret ballot.

Section Number 9:

On the election day, the members of the Executive Committee will also have the right to vote for the new Chairman.

Section Number 10:

To participate in the elections, the required fee must be submitted to the Supreme Leader, along with the application, at least five days before the elections.

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Section Number 7:

The Fund

Section Number 1:

This council will have its own fund

Section Number 2:

Each member of the council will contribute 100 rupees per month to the council's fund.

Section Number 3:

A member of the council may choose to contribute the entire annual amount in one payment.

Section Number 4:

In addition to the regular contributions, anyone who wishes to make a voluntary financial contribution to the council's fund is welcome. The council will accept such contributions with gratitude and appreciation.

Section Number 5:

The council will have an account in a reliable bank, where the President, General Secretary, and Treasurer will jointly withdraw funds. Additionally, the Treasurer will have the authority to keep 50,000 rupees for emergency expenditures.

Section Number 8

No Confidence, Resignation and Expulsion

Section Number 1: No Confidence

Subsection Number 1:

A motion of no confidence against any member of the central leadership can be initiated by a member of the Grand Organization, provided they gather support from ten other members.

Subsection Number 2:

The motion of no confidence will be submitted in writing to the Chairman of the Executive Committee, with the signatures of at least eleven members.

Subsection Number 3:

The Chairman of the Executive Committee, in consultation with the Supreme Leader, will present the motion of no confidence to the Grand Organization.

Subsection Number 4:

The Grand Organization will make a decision on the motion of no confidence by a simple majority vote.

Subsection Number 5:

The motion of no confidence can be presented no later than six months before the elections.

Subsection Number 6:

A motion of no confidence against any officeholder can only be introduced once during their term.

Section Number 2: Resignation

Subsection Number 1:

If any member of the central leadership resigns from their position, they must submit their resignation to the Chairman of the Council. The Chairman of the Council will then, with the approval of the President, present it to the Grand Organization. The Grand Organization will accept or reject the resignation by a simple majority vote.

Subsection Number 2:

Until a new officeholder is elected, the resigning officeholder will continue to perform their duties.

Subsection Number 3:

The President and the Senior Deputy must submit their resignations to the Chairman of the Executive Committee. The Chairman will then present their resignation to the Grand Organization with the approval of the Supreme Leader. The Grand Organization will accept or reject the resignation by a simple majority vote.

Subsection Number 4:

The Chairman of the Executive Committee must submit their resignation to the Supreme Leader. The Supreme Leader will, with the approval of the President, present it to the Grand Organization. The Grand Organization will accept or reject the resignation by a simple majority vote.

Section Number 3: Expulsion

Subsection Number 1:

A member of the Grand Organization who fails to attend five consecutive meetings will be considered expelled.

Subsection Number 2:

A member of the administrative leadership who fails to attend three consecutive meetings will be considered expelled, and their powers will be transferred to the Senior Secretary until the upcoming decision.

Subsection Number 3:

Expelled members will be given an opportunity to explain themselves before expulsion is finalized

Subsection Number 4:

An expelled member will not be allowed to make any kind of requests to the Organization.

Subsection Number 5:

If a member violates the constitution or rules, the Grand Organization will revoke their membership by a simple majority vote.

Subsection Number 6:

If a member or officeholder is proven to be involved in misconduct or corruption related to the Organization's financial matters, they will be expelled from the Organization.

Subsection Number 7:

If a member or officeholder is involved in any form of immoral crime, they will be expelled from the Organization.

Subsection Number 8:

Expulsion will be for a period of one year, and after that, the Grand Organization may, by a simple majority vote, reinstate their membership.

Section Number 9

Audit

Section Number 1:

Registered Audit

Section Number 10

Rules and Regulations

Subsection Number 1:

Political party affiliations will not be allowed to be discussed during the Organization meetings.

Subsection Number 2:

No one is permitted to use the Organization for promoting their political party or organization.

Section Number 3:

Everyone outside the Organization will be free to follow their own beliefs and profession.

Section Number 4:

All members of the Administrative Leadership Cabinet and the General Organization will be accountable to the Grand Organization.

Section Number 5:

A meeting of the Organization must be held at least once every three months.

Section Number 6:

A member of this Organization cannot become a member of another Organization or organization under the name of the Yousafzai community. In such a case, their membership will be revoked. However, they will not be restricted from membership in other political or social organizations.

Section Number 7:

A member holding a political party position cannot hold a position in the Yousafzai National Organization.

Section Number 8:

No one can suspend or invalidate this constitution.

Section Number 9:

The Grand Organization may make positive amendments to this constitution as time progresses.

Section Number 10:

To amend the constitution, a 2/3 majority of the Grand Organization is required.

Section Number 11:

Members present at a session of the Grand Organization can be considered as the full Organization.

Section Number 12:

This Organization shall not be used for the benefit of any political party or personal interests.

Section Number 13:

This Organization does not engage in parliamentary politics.

Section Number 14:

Members or officeholders of this Organization, wherever they may be, must respect the laws of the country they are in.

End

Note:

This Constitution was drafted under the supervision of the following individuals:

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